

26STLC01688 26STLC01688

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-07-31

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Case Number: 26STLC01688 Hearing Date: July 31, 2026 Dept: 833

Ally Bank, Case No. 26STLC01688

Hearing:

July 31, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

Ana

Magana and Judge:

Joseph Lipner

Gizzale

Rivera

[Tentative] Order Denying

Application for Writ of Possession

INTRODUCTION

Plaintiff Ally Bank ("Plaintiff") moves for writ

of possession against Defendants Ana Magana and Gizale Rivera (collectively, "Defendants")

over the following property: 2021 BMW 4 Series, motor vehicle, Vehicle

Identification Number WBA53AP0XMCG63427 (the "Vehicle"). Defendants have not

filed an opposition.

The Court DENIES the writ of possession.

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought.” (Code Civ. Pro. § 512.010, subd. (a).)

Pursuant to Code of Civil Procedure section 512.010, subd. (b), the application must be submitted under oath and include:

- (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.
- (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.
- (3) A particular description of the property and a statement of its value.
- (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.
- (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the Writ of Possession, the Defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Pro. § 512.030.)

“The writ will be issued if the court finds that the plaintiff’s claim is probably valid and the other requirements for issuing the writ are established.” (Code Civ. Pro. § 512.040(b).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 511.090.)

DISCUSSION

A.

Notice

Plaintiff

provided proper notice, per the proof of service filed on May 1, 2026.

B.

Probable Validity of Plaintiff’s Claim

Plaintiff seeks writs of possession based on its cause of action for claim and delivery of personal property.

Defendants entered a contract for the purchase of the Vehicle and secured financing for the contract through Plaintiff. (Nunez Decl., ¶ 6.) Pursuant to the terms of the contract, Plaintiff had the right to immediate possession of the subject vehicle if Defendants did not make payment to Plaintiff. (Nunez Decl., ¶ 8.) Defendants have failed to make \$34,788.69 worth of payments to Plaintiff. (Nunez Decl., ¶ 10.) Prior to the commencement of this action, Plaintiff demanded from Defendants that they deliver possession of the Vehicle to the Plaintiff. (Nunez Decl., ¶ 9.)

The balance due suggests Plaintiff will prevail on the claim.

C.

Wrongful Detention

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(2), the application must include “a showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.”

Plaintiff has made this showing.

D.

Description and Value of Property

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(3), the application must include a particular description of the property and a statement of its value. Plaintiff

has provided a particular description of the property, by make, and VIN number.

(Nunez Decl., ¶ 6.)

Plaintiff therefore satisfies

section 512.010, subd. (b)(3).

E.

Statutory Statement

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(5), Plaintiff must provide a statement that the property has not been taken for a tax, assessment, or fine, pursuant to statute and has not been seized under an execution against the Plaintiff's property. The application includes this statement. (Application, ¶ 8a.)

F.

Location of the Property

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(4), Plaintiff must identify the probable location of the Vehicle and establish probable cause to that

effect. Plaintiff seeks a writ of

possession directing the levying officer to take the Vehicle from real property

located at 11262 Bromont Ave., Pacoima, CA 91331. (Nunez Decl., ¶ 14.)

That address

appears on the contract from 2024. (Nunez Decl., Exh. A.) Plaintiff has not offered any probable cause to show that the vehicle is currently located at that address, and has thus, not complied with Code of Civil Procedure section 512.010, subd. (b)(4).

G.

Undertaking.

Code of Civil Procedure section 515.010 requires an undertaking to be filed before the writ issues in the amount of “not less than twice the value of the defendant’s interest in the property.”

Section

515.010, subd. (a) states that the value of the defendant’s interest “is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant’s interest in the property.”

However, Section 515.010, subd. (b)

says that “[i]f the Court finds that the Defendant has no interest in the property, the court shall waive the requirement of the Plaintiff’s undertaking.

Instead,

Section 515.010, subd. (b) requires Defendant to post an undertaking in an amount equal to the maximum retail value.

An undertaking is not necessary

because Plaintiff has not established the probable cause requirement.

H.

Turnover Order

Section 512.070

states: “If a writ of possession is issued, the court may also issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court.”

(emphasis added.) "Thus a 'turnover' order, issued pursuant to section 512.070, is not a separate remedy but rather an alternative means of enforcing a writ of possession." (Edwards v. Sup.Ct. (1991) 230 Cal.App.3d 173, 178.)

Because the Court
will not issue a writ of possession, the Court will not issue a turnover order.

I.

Oral Evidence

Plaintiff "anticipates the need for extremely
brief, but very important, examination of the defendant" regarding the
Vehicle's location. (Memorandum, p. 3.) However, Defendant has not responded to
the complaint, and Plaintiff does not demonstrate that it will be able to
obtain Defendant's testimony at the hearing. Furthermore, "[a] party seeking
permission to introduce oral evidence, except for oral evidence in rebuttal to
oral evidence presented by the other party, must file, no later than three
court days before the hearing, a written statement stating the nature and
extent of the evidence proposed to be introduced and a reasonable time estimate
for the hearing." (Cal. Rules of Court,
Rule 3.1306, subd. (b).) Plaintiff has
not complied with this rule. Therefore,
the court denies the request for oral testimony.

CONCLUSION

The Court DENIES the writ of possession.

IT IS SO ORDERED.

Dated: July 31,
2026

Joseph
Lipner

Superior
Court Judge